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CHAPTER

15 Epistemic Injustice: Phenomena and Theories

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Abstract

Epistemic injustice has become one of the most widely discussed topics in social epistemology, and has revived interest in issues in the intersections between epistemology and ethics and political philosophy. Much of the impetus for this recent explosion of interest has been the influential work of Miranda Fricker; however, Fricker's framework and terminology for discussing the phenomena and the kinds of examples she's interested in have not always been cleanly separated from the phenomena themselves. This chapter examines what's distinctive of Fricker's treatment of the phenomena she labels epistemic injustice, focusing on the two varieties that her discussion highlights, testimonial injustice and hermeneutical injustice. Once the distinctive elements of Fricker's treatment are clearer, we will be better placed to assess which of them are plausible and which implausible, and to consider alternative theoretical frameworks for thinking about the phenomena, such as that developed by Kristie Dotson.

Keywords: [epistemic injustice](#), [testimonial injustice](#), [credibility](#), [prejudice](#), [testimonial quieting](#), [hermeneutical injustice](#), [hermeneutical marginalization](#), [Miranda Fricker](#), [Kristie Dotson](#)

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1. What Is Epistemic Injustice?

Injustice involves someone being treated in ways, or facing outcomes, which are not only harmful to that person, but which are unfair and undeserved. An epistemic injustice, then, is an injustice that is somehow epistemic in character. That's not very informative, and improving on it requires saying something about what 'epistemic' means here, and something about what it takes for an injustice to be epistemic in the relevant sense. Miranda Fricker's hugely influential 2007 book *Epistemic Injustice: Power and the Ethics of Knowing* offers a useful starting point here, characterizing epistemic injustice as involving a harm done to one in one's capacity as a knower (2007: 1). One acts in one's capacity as a knower when one engages in inquiry or reasoning with the aim of coming by new knowledge, or one reflects on and interprets the experiences one has had, or when one shares one's knowledge through testimony or teaching: that is, when one engages in activities involving the acquisition, production, and sharing of knowledge.

This focus on knowledge in Fricker's characterization might seem puzzling. After all, epistemology also concerns itself with notions like justification, evidence, certainty, wisdom, warrant, entitlement, credibility, understanding, and so on. Given this, we might naturally generalize Fricker's original characterization, suggesting that an epistemic injustice is a harm done to one in one's capacity as an epistemic agent, and more recently Fricker herself has taken up this suggestion (e.g., Fricker 2013: 1320 and 2017: 53).¹ As I conceive of epistemic agency, it's agency exercised with respect to our epistemic practices. These will include the practices of acquiring, producing, and sharing knowledge listed in the previous paragraph, but it will also include gathering evidence, gaining understanding, sharing wisdom, acquiring justification for one's beliefs and sharing that justification through testimony, and much more. There are two main motivations for generalizing in this way. First, one may have general reservations about placing knowledge too centrally in epistemology, perhaps because one thinks that justification or warrant or some other notion is more fundamental, or perhaps because one thinks that no member of the family of epistemic notions is more fundamental than all the others (see, e.g., McGlynn 2014 and Gerken 2018). Second, one might worry that in focusing on one's capacity as a knower, one might miss or misunderstand kinds of epistemic injustice that don't, at least on the face of it, have much to do with knowledge—in fact, as we'll see in section 2, it's not always clear how much Fricker's own discussion has to do with knowledge (Gerken 2019: 2).

On either the narrower or the broader way of characterizing the notion of epistemic injustice, we might think that rather a lot will fall under this label. Access to educational opportunities, well-funded schools, books, the internet, expertise, and so on, are not evenly distributed, but can depend heavily on a person's gender, race, class, whether or not they are disabled or ill, and so on. These will in turn be associated with a broader range of related injustices. For example, many philosophers think that claiming that something is the case or taking it that something is the case in one's reasoning about how to act are governed by epistemic norms: norms which require that one knows, or is certain of, or has a justified belief in the relevant proposition, if one's assertion or practical reasoning is to count as in good standing.² Supposing that this picture is broadly correct, if epistemic goods such as knowledge and justified belief are unfairly distributed, then so will be the standing to make assertions and to act (Stanley 2015: 254).

We might naturally expect this kind of unjust distribution of access to knowledge and other epistemic goods and opportunities to be a kind of paradigm of what epistemic injustice looks like. However, in her book Fricker quickly sets it aside:

When epistemic injustice takes this form, there is nothing very distinctively epistemic about it, for it seems largely incidental that the good in question can be characterized as an epistemic good.

(2007: 1)

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Wealth, power, access to healthcare, access to housing, job opportunities, bodily safety, and many more goods are deeply unequally distributed, and such unequal distributions are clearly of the utmost importance; Fricker isn't denying this. But Fricker's claim is that to the extent that unequal distributions of epistemic goods can be assimilated to these other kinds of injustice, there's no special reason for epistemologists to take a particular interest; they don't involve any distinctive kind of harm to a person in their capacity as an epistemic agent. This line of thought in Fricker's book has been criticized (e.g., Coady 2010), and Fricker has subsequently conceded the point. In her more recent writings ↪ on the topic, she has separated epistemic injustices into two broad categories: *distributive* epistemic injustices, which involve an unjust distribution of epistemic goods and opportunities, and *discriminatory* epistemic injustices, which include paradigmatically the two species of epistemic injustice she focused on her book (e.g., Fricker 2013: 1318 and 2017: 53).

There has been some recent work in the literature on distributive epistemic injustice (e.g., Irzik and Kurtulmus 2024), but despite Fricker's own broadening conception of epistemic injustice since her 2007 book, the discussion has overwhelmingly focused on the two varieties of discriminatory epistemic injustice she focused on there: *testimonial* and *hermeneutical* injustice. I'll have much to say about how to characterize both of these in this chapter, but some preliminary definitions will be helpful at this stage. Testimonial injustice involves a speaker receiving less credibility than she deserves when offering testimony due to prejudices held by her audience. Hermeneutical injustice occurs when there are barriers to subjects making their social experiences intelligible to themselves or others, where these barriers are due to their belonging to social groups which tend to be excluded from the kinds of institutions and practices which have the most significant role in shaping a community's shared hermeneutical resources: resources for interpreting one's experiences and sharing them with others. This chapter will follow the dominant trend in the literature of concentrating attention on these two varieties of epistemic injustice. In focusing my discussion this way, I don't mean to suggest that distributive epistemic injustice or possible varieties of discriminatory epistemic injustice other than those identified by Fricker are of no interest; this is far from the case.

In the years since the publication of Fricker's book, epistemic injustice has become a hugely active and expanding area of research, slipping well beyond the (porous) boundaries of social epistemology, analytic philosophy, and even philosophy as a whole. However, this chapter has no ambitions to survey all of these developments and applications, as exciting and important as many of them are. Instead, I focus in on what I take to be some of the core philosophical issues raised by Fricker's treatment of epistemic injustice and the subsequent literature, in particular those relating to the nature and scope of epistemic injustice and the two varieties identified by Fricker. My hope is that clarity and progress on these core questions and issues will both be worthwhile in their own right, and better position us to collectively tackle further issues raised by epistemic injustice; I briefly outline some of these in my closing remarks.

2. Testimonial Injustice

Let's start with some examples, two of them taken from well-known, relatively realistic works of fiction, and one non-fictional.

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In Anthony Minghella's screen adaption of Patricia Highsmith's *The Talented Mr. Ripley*, Marge Sherwood is convinced that Tom Ripley played a role in the disappearance of her fiancé, Dickie Greenleaf. Sherwood is right, and she's got good grounds for ↪ her suspicions; after Dickie's disappearance, she finds his rings in Ripley's possession, and Ripley's story about how they came to him isn't plausible given what she knows about Dickie and his attachment to the rings and to her. Despite this, when she tries to tell Dickie's father, Herbert Greenleaf, about Ripley's involvement, he is dismissive: 'Marge, there's female intuition, and then there are facts' (Minghella 2000: 130).

Tom Robinson, a disabled Black man, is on trial for the rape of a young white woman, Mayella Ewell, in 1930s Maycomb, Alabama, in Harper Lee's *To Kill a Mockingbird* (Lee 1960). Not only is Robinson innocent, his disability means that he clearly couldn't have inflicted the injuries that Mayella claims were sustained during his attack on her. Robinson's lawyer, Atticus Finch, demonstrates all of this in front of the jury, and makes it probable that it was Mayella's father, Bob Ewell, who was responsible for beating her; yet the jury finds Robinson's testimony incredible and convicts him.³ Finch is confident that Robinson will win a retrial, but Robinson is killed in prison before this is put to the test.

The Black legal scholar Patricia Williams recounts shopping for a Christmas gift for her mother, and seeing something suitable through the window of a shop, so pushing a buzzer to request entry. The shop assistant, a white teenager, signalled to her that the shop was closed, even though she could see other—also white—customers inside shopping. Recounting this story to people later, Williams discovered that a number of them were sceptical of her claim that race had played any significant role in the episode (Williams 1991: 46–51).

Each of these examples features a number of injustices: the killer of Sherwood's fiancé gets away with the crime; Robinson is falsely convicted and imprisoned, and ultimately killed in prison, leaving behind a wife and children; Williams is racially discriminated against and is prevented from buying the sweater she'd picked out for her mother. However, each example also features an element of injustice that seems *epistemic* in character; in each, someone tries to offer testimony to an audience and has the relevant knowledge or justification, and yet the attempt to share that knowledge or justification with their audience fails because the audience refuses to accept the testimony offered to them.

p. 299 That's about as neutral and uncontroversial a description of what unifies these three examples as it seems possible to give, and it intentionally leaves open what the best description of the examples is in richer, more theoretical terms. Fricker presents all three as examples of the first species of epistemic injustice she identifies, testimonial injustice, and the literature typically follows suit.⁴ This way of presenting the examples, as illustrating testimonial injustice as Fricker understands it, blurs the line between the phenomena and Fricker's theoretical description of it too much, and given the influence ↵ of her discussion, this has had a number of bad effects on the subsequent literature. When Fricker's theoretical choices and commitments are rendered relatively invisible, there's a tendency for people to take them on board somewhat too uncritically, since challenging them can seem tantamount to denying the reality of the injustices she is concerned with. Relatedly, it makes it harder to see room for alternative ways to theorize about examples like the three we started this section with.

It has also, I think, led to some misguided negative reactions to Fricker's work. Fricker has been criticized for not sufficiently crediting and discussing the work of earlier philosophers and other theorists and writers who highlighted similar phenomena and themes before she did, particularly those in the Black feminist tradition, but also more broadly. There's some justice to this criticism; both the ways in which members of disadvantaged and oppressed groups can be silenced and their knowledge disregarded, and the ways in which they can struggle with limited and inapt conceptualizations and expressive resources, have been themes in the work of various philosophers and thinkers across the 20th century (and perhaps even earlier), and this isn't really reflected in Fricker's book. That said, it is a mistake to conclude on this basis that Fricker has added nothing significant to discussion of these issues: that her contribution is little more than attaching catchy labels to phenomena that others had already worked, relatively invisibly, to identify and understand. On the contrary, we'll see in what follows that Fricker offers a highly distinctive approach to these issues, one that deserves detailed and careful engagement, even if one ultimately ends up rejecting key aspects of it.⁵

As a corrective to both of these trends, this section aims to identify six distinctive aspects of Fricker's account of testimonial injustice, and to consider the issues raised by each, examining potential problems or alternative ways of approaching the initial examples, as well as variants of those examples. In the following section, I'll offer a similar discussion of hermeneutical injustice.

2.1. Fricker's Account of Testimonial Injustice

Let's start by turning to Fricker's definition of testimonial injustice; we'll then unpick its key features and some aspects of the philosophical framework she embeds it in. According to Fricker's characterization, a testimonial injustice occurs when a testifier receives a credibility deficit due to prejudices held by their audience (2007: 27). For example, a scientist may try to convey her findings to a group of her peers, only to find that they don't give her testimony as much credibility as they ought, due to prejudices they have against the research methodology employed by the speaker (2007: 27). However, Fricker focuses our attention on testimonial injustices that arise due to particular kinds of prejudices. Consider a philosopher of science attending a conference dominated by working scientists (2007: 28–29). When the philosopher makes claims about cutting-edge scientific results, she isn't taken seriously by the other participants; she's just a philosopher, and what do they know? In fact, our philosopher has significant knowledge and understanding of the contemporary science, and her claims are grounded in and demonstrate this expertise; her audience ought to have given her more credibility than they did. In this example, the credibility deficit that the speaker receives is due to an identity prejudice: a prejudice against people who share a particular social identity.⁶

The consequences for the philosopher of science in our example might be serious. She may lose out on professional standing and opportunities that should rightly be hers, causing her life to go in a worse direction than if she were able to be taken as seriously as she deserves. But they are, in an important sense, local and so limited. The prejudices against philosophers that she faces at the conference may recur at other gatherings of scientists, but they are unlikely to recur when she applies for a bank loan, or when she is pulled over by the police, or when she applies for promotion in the philosophy department at her university. The identity prejudice in question gives rise to testimonial injustice that is, as Fricker puts it, *incidental* (2007: 27). Other prejudices against social identities do not; they give rise to testimonial injustices that are *systematic*, since these prejudices “track” the subject through different dimensions of social activity—economic, educational, professional, sexual, legal, political, religious, and so on’ (2007: 27). Identity prejudices of this sort include prejudices against people of particular genders; races; sexualities; against disabled people, trans people, fat people, and older people; against people of particular socioeconomic classes; and against those who practice or identify with certain religions. The ‘central case’ of testimonial injustice, for Fricker, involves *systematic identity-prejudicial credibility deficits* (2007: 28).

We can certainly treat all three of our starting examples as testimonial injustices in this sense. Each involves an audience failing to give a speaker the credibility they deserve due to prejudices, and in particular identity prejudices, held by that audience. In the case of Marge Sherwood, these are prejudices against women (and perhaps specifically against young unmarried women, whom Greenleaf clearly takes to be naive), while Tom Robinson is a disabled Black man and Patricia Williams is a Black woman, and this is relevant to how their testimony is received by their respective audiences.⁷ Moreover, these are all identities that are associated with prejudices which ‘track’ in Fricker's sense, so these are instances of systematic identity-prejudicial credibility deficits.

It's worth noting that the examples differ not just in the particular prejudices in play, but also in how those prejudices work to call into question the speaker's credibility. Greenleaf's prejudices target Sherwood's credibility by painting her as epistemically incompetent, while the jury's prejudices against Robinson and Williams's audience's scepticism about her account of being racially profiled target their credibility by painting them as insincere. While recognizing this difference between the examples, Fricker argues that both kinds can be seen as exemplifying a unified species of epistemic injustice:

[D]espite the possibility that a prejudice might separate the twin components of epistemic untrustworthiness, I suggest that the experience of testimonial injustice remains unified enough to warrant a unified ethical characterisation in terms of being wrong *qua* giver of knowledge.

We can see here why Fricker takes testimonial injustice to be a species of epistemic injustice; one is harmed in one's capacity as a knower by being harmed in one's capacity as a giver of knowledge—we'll return to this below.

2.2. Distinctive Aspects of Fricker's Account of Testimonial Injustice

Having laid out Fricker's characterization of testimonial injustice and how it applies to the three examples, I want to look at some of the ways in which Fricker's treatment goes far beyond just a neutral description of those examples. My aim in doing this isn't primarily to argue against any of these aspects of Fricker's picture, but only to make its distinctive features much more salient, and to identify some places where there's room for alternative approaches (some of which have already been explored in the literature, as we'll see).

2.2.1. Credibility Deficits versus Imputed Ignorance

Each of the three examples—Marge Sherwood, Tom Robinson, and Patricia Williams—involves a speaker receiving a prejudicial credibility deficit: that much I think should be immediately conceded to Fricker. That said, perhaps Fricker's definition has us focus on the wrong features of the examples when thinking about what unites them and makes them significant. After all, the three cases also all involve a knower trying to share their knowledge via testimony, yet failing due to their audience not recognizing them as knowers.⁸ Why think that it's the fact the cases all involve speakers receiving less credibility than they ought to, rather than the fact that they all involve mistakenly imputed ignorance, that's the key thing that unifies them?⁹

These aren't merely superficially different formulations of the same basic idea; while there will be lots of overlap between them, they don't always agree on whether a particular example involves testimonial injustice (Luzzi 2016). To take one obvious difference, it seems possible for someone to receive less credibility than they ought, due to prejudices held by their audience, even when they testify to a falsehood. We can imagine a subject who isn't being insincere or incompetent; rather the evidence they have is simply misleading. Suppose now their audience dismisses what they say due to racist prejudices, without having any independent grounds to doubt the speaker on this occasion. This is a prejudicial credibility deficit, but it doesn't involve treating a knower as ignorant (since the speaker *isn't* a knower).¹⁰ It's also possible to imagine cases in which a speaker's audience correctly recognizes that speaker as a knower, yet still prejudicially lowers their confidence in that speaker's testimony (Piovarchy 2020: 610; McGlynn 2021: 163). Suppose, for example, I grudgingly take someone to be a knower and accept their testimony, but if it weren't for my prejudices I would recognize them as an expert and invest even greater confidence in their testimony.¹¹

If we agree that both of these examples should count as genuine cases of testimonial injustice, this seems to support Fricker in taking credibility deficits to be the key notion. However, Federicouzzi (2016) has constructed examples that seem to push in the other direction, since they suggest that there are cases of testimonial injustice that involve prejudicially taking a knower to be ignorant without subjecting them to a credibility deficit. In other words, Luzzi argues that an audience can mistakenly and prejudicially regard a knower as a non-knower while simultaneously giving them exactly as much credibility as they deserve when testifying. His most persuasive example turns on the observation that a person can have very good grounds for believing some proposition, yet fail to have a justified belief because they in fact base their belief in that proposition on other, inadequate grounds. For instance, suppose I possess excellent evidence that my arch-nemesis has cheated on a test we have both taken, but form the belief he has cheated instead based on my misplaced confidence that he couldn't possibly have beaten my own score otherwise. Despite the evidence at my disposal, it's plausible that I lack a justified belief or knowledge in this example; my belief isn't *properly*

based or well-founded, as epistemologists say, since it's not based on good grounds (even though such grounds are in my possession).¹²

Now, Luzzi asks us to consider an audience that prejudicially takes members of a given group to systematically squander the excellent evidence they have available to them on a particular topic, in much this fashion. More specifically, according to the audience's prejudices members of this group invariably successfully gather evidence that *would* suffice to render their beliefs on this topic justified, and in fact form true beliefs, but they form these beliefs on other, completely inadequate grounds. When a member of this group knowledgeably offers testimony on the subject matter in question, this prejudiced audience will regard the speaker as lacking knowledge, since they'll take the speaker to be expressing a belief that's not properly based. Still, the audience will simultaneously credit the speaker with excellent justification for what they are saying, and so there's no reason to expect that they will lower the degree of credibility they grant the speaker. Despite this absence of a credibility deficit, Luzzi contends that this is an example of testimonial injustice.

Rather than try to resolve any tension here, I appeal to these examples just to show that we've found our first theoretical choice-point. Should we favour a characterization of testimonial injustice in terms of credibility deficits, as Fricker proposed, or in terms of imputed ignorance? It's worth noting that Kristie Dotson has introduced a notion she calls *testimonial quieting* which would offer an account of the three cases along the latter lines. Testimonial quieting is sometimes treated as if it's just Dotson's label for testimonial injustice, but this is a mistake, and one difference between the two is that testimonial quieting is defined in terms of imputed ignorance: it occurs 'when an audience fails to identify a speaker as a knower' (2011: 242).¹³ We'll return to Dotson's notion of testimonial quieting at various points throughout this chapter, as it offers a contrast to Fricker's notion of testimonial injustice in virtually all of the aspects we'll discuss.¹⁴

2.2.2. Prejudice versus Ignorance

As noted a moment ago, it's very plausible that in each of the three examples above, the speaker's testimony is discounted because of prejudices—in particular identity prejudices—held by their audience. However, we can acknowledge this point while again wondering if Fricker's focus on prejudice is the right one, or whether there's a better explanation of the phenomena illustrated by the cases.

One proposal along these lines starts from the observation that having prejudices about something is one way, but only one way, of being ignorant about it. I can be ignorant about something because I have false or unwarranted *preconceptions* about what it's like, or because I simply form *no* conception of it at all. In particular, identity prejudices are one way to be ignorant about a group of people sharing a social identity, but not the only way; I can also remain ignorant about a social group through learning nothing about them, even if I avoid forming a prejudicial picture of them.¹⁵ Many people have no idea where the meat they buy at the supermarket comes from, or about the lives of the people who make their clothes or mine the materials that go into their phones, and often the problem may be less that they've formed a false impression about these matters and these people, than that they simply don't think about them at all.

As these examples suggest, this kind of ignorance isn't always an entirely innocent matter. Rather, some of our pockets of ignorance are nonaccidental and motivated, rather than simply reflecting aspects of the world and its inhabitants that we haven't had an opportunity to learn about yet. A thoroughgoing ignorance about some issues and some lives may require a lack of curiosity, a lack of attention, avoiding exposure to relevant evidence and testimony, mechanisms to ensure that such evidence and testimony one is exposed to is dismissed or misunderstood, and so on. That's not to say that this kind of ignorance is always consciously or intentionally maintained (though in some cases it is).¹⁶ The crucial thing is that it is *actively* maintained, where this may involve the operations of psychological or social mechanisms that individual epistemic agents aren't ordinarily aware of and may lack direct control over.¹⁷

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Fricker takes prejudice as the key factor in cases of testimonial injustice, but why not instead think that what's crucial is that an audience dismisses the speaker's testimony due to their active ignorance, in the foregoing sense?¹⁸ Again, we can turn to Dotson's notion of testimonial quieting to illustrate what this second option looks like. Dotson's main examples *do* involve prejudices, in particular the 'controlling images' of Black women laid out and dissected by Patricia Hill Collins (2000: ch. 4). These controlling images prevent Black women from being seen as knowers on a range of topics, including their own lives and experiences; for example, widespread images which depict Black women as hypersexualized will make it harder for them to be recognized as knowers when reporting sexual assault. An audience who cannot see past these controlling images will not be able to 'reciprocate' the testimony of Black women appropriately. Dotson describes this failure to reciprocate due to pernicious ignorance a form of 'epistemic violence' (2011: 238), where pernicious ignorance is ignorance that is harmful and involves a 'reliable' failure to track the truth: it is ignorance not just of one or two propositions, but across an entire domain of information.¹⁹ Reliable ignorance of this sort will be active in the sense described in the previous paragraph; it involves being systematically uninformed or misinformed about the domain in question, and this doesn't occur accidentally, but rather as a result of 'an active practice of unknowing' (2011: 243).

The relevance of this is that while Dotson's primary examples of testimonial quieting and epistemic violence do involve prejudices—Collins's controlling images—there's nothing in Dotson's characterizations of these notions that *requires* that the perpetrator harbour any prejudices of this sort. At bottom, epistemic quieting is a failure of an audience to recognize a testifier as a knower due to the audience's pernicious ignorance. That the phenomenon illustrated by our three starting examples should instead be understood with essential reference to prejudices therefore requires further support. Moreover, some of Fricker's critics have offered putative examples of testimonial injustice without prejudice, though it will be helpful to introduce these examples in the context of another, closely related feature of her account.

2.2.3. Injustice versus Luck

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A very distinctive—and potentially problematic—feature of Fricker's account is the way she draws a dichotomy between testimonial injustice and mere *epistemic bad luck*.²⁰ This contrast is meant to come out when we look at examples in which a speaker's testimony isn't taken seriously due to their audience depending on, not a prejudice in Fricker's sense, but a generally reliable stereotype which isn't true of this particular speaker. Consider a schematic example of this form discussed by Fricker.²¹ Suppose that a speaker is offering an audience testimony, and the speaker doesn't belong to any social groups which that audience harbours prejudices towards. The speaker really has the knowledge he claims to have, and he is sincerely trying to share that knowledge. However, his audience fails to take him to be a credible testifier, due to the way he is acting; the speaker won't make eye contact with his audience, keeps pausing as if to figure out how best to spin a yarn, and generally comes across as insincere (2007: 41). In fact, this behaviour is a manifestation of discomfort caused by speaking to this particular audience rather than of insincerity; nonetheless, since these often *are* signs of insincerity, we might not think the audience's hesitation to accept the speaker's testimony manifests any prejudice. Now, according to Fricker this isn't a case of testimonial injustice; the speaker and audience are just subject to epistemic bad luck. In such cases, the audience did all that anyone could ask of them—the audience 'has not put a foot wrong' (2007: 42)—but sometimes evidence is misleading. The speaker might still be harmed by having their testimony dismissed, but there's no injustice: harm, but no foul.²²

A number of philosophers have raised concerns about Fricker's willingness to chalk up these kinds of examples as ones of bad luck rather than epistemic injustice. For instance, Ishani Maitra offers a variant of the example discussed by Fricker, in which

the speaker is a victim of a crime—say, a rape victim—and the hearer is a police officer to whom she is reporting her ordeal. Even granting that the stereotype here is genuinely reliable and

nonprejudicial, if this police officer dismisses the victim merely because of her shifty manner, without making any further effort to check whether she is really lying, he (intuitively speaking) seems to commit a wrong against the victim. (2010: 203)²³

p. 307 If we accept both Maitra's description of the example and her verdict about it, that suggests that some of the kinds of examples that Fricker would have us class as just epistemic bad luck in fact involve a speaker being wronged (not merely unluckily harmed) by their audience. Moreover, returning to the discussion of the previous point, this might lead one to favour an account of these phenomena which places active or pernicious ignorance at its centre, rather than prejudice; the officer may not be relying on any ↵ prejudices, but his ignorance causes him to fail to appropriately reciprocate the speaker's testimony.²⁴

We might respond on Fricker's behalf by noting that even if 'shifty' behaviour is a reliable sign of lack of trustworthiness in the general population, it's not when we focus on survivors of rape in particular, in which case the stereotype isn't 'genuinely reliable'. We might also worry that features of this particular example make this whole issue rather moot. A police officer who dismisses a rape victim's testimony on this kind of basis 'without making any further effort to check whether she is really lying' simply hasn't done their job; they have failed to discharge their role in even the most minimal sense. So our sense that the police officer has done badly by the speaker might be linked to their professional role and the duties that come with it, rather than indicating that they have wronged the speaker in a distinctively epistemic sense; perhaps in certain professional or legal contexts, epistemic bad luck carries more significance and so failing to eliminate it counts as an injustice to the speaker, without this necessarily being an epistemic injustice of the kind that interests Fricker.

Still, the example does serve to put some pressure on Fricker's picture. I suspect the verdict that the speaker in Maitra's example has been harmed remains even if we replace the police officer with an audience who doesn't have any professional obligations or duties in that context. Moreover, while it's true that we can debate whether the audience in the example ignorantly employs a reliable stereotype that fails to apply to the particular speaker in question or employs a prejudicial stereotype, there seems to be something odd about attaching as much significance to this distinction as Fricker's view has us do. Even if there are no prejudices of the sort Fricker discusses at work, the credibility deficit received by the speaker in such cases seems to be an aspect of the broader package of injustices faced by speakers belonging to a particular disadvantaged group (survivors of sexual assault, in Maitra's example); that's why we should be wary of too quickly chalking these up as just epistemic bad luck, involving harms but no wrongs.²⁵

2.2.4. Testimonial Injustice as Epistemic Injustice

p. 308 On Fricker's account, testimonial injustice is one variety of the kind of epistemic injustice that her work focuses on. This might seem too obvious to be even worth saying, but I think that's a mistake—this is another place where Fricker's theoretical framework has become almost invisible to us. Epistemic injustice, in Fricker's sense, involves a wrong done to someone distinctively in their capacity as a knower, or more generally an epistemic agent, and it's a theoretical claim that cases of testimonial injustice all involve this kind of wrong. As with some of the earlier aspects of Fricker's account we've examined, perhaps all three of our initial three examples involve speakers being harmed in their capacity as epistemic agents, but this doesn't by itself show that Fricker has focused our ↵ attention onto the right features of these examples for theorizing about the wider phenomenon they exemplify.²⁶

To bring this point out, consider again Dotson's definition of testimonial quieting. Quieting involves an audience failing to reciprocate proffered testimony due to a failure to recognize the speaker as a knower, where this is rooted in the pernicious ignorance of the audience. By definition, pernicious ignorance is *harmful* ignorance, but crucially, this harm need not be experienced by the speaker, nor need it be harm that is epistemic in nature, in any sense. An example of Dotson's will illustrate. She imagines a three-year-old child

who is ignorant of certain key facts about fire, and who fails to appropriately reciprocate warnings about the danger of fires as a result, leading to the child setting fire to something and causing damage. This is, Dotson maintains, an example of testimonial quieting and epistemic violence, as we characterized those above in sections 2.2.1 and 2.2.2. But although the child's ignorance and resulting inability to reciprocate the warning is harmful, it need not be the speaker whose warning was not heeded that is harmed—the child may set fire to an entirely unrelated person's property. Moreover, as harmful as having one's property set on fire is, this is clearly not a distinctively epistemic harm, on even the most generous of conceptions. The central idea behind Fricker's notion of epistemic injustice, that there's a distinctive kind of harm done to subjects in their capacity as epistemic agents, isn't any part of Dotson's notions of testimonial quieting or epistemic violence; that raises the question of whether it should be built into our account of the phenomenon illustrated by our three examples.

Dotson's example of the child who fails to heed a fire safety lecture is also useful because it brings out why some will find her general framework, and in particular her notions of testimonial quieting and epistemic violence, objectionable. Dotson herself recognizes that many philosophers may find her account too 'consequentialist' (2011: 239), meaning that it's too focused on the harmful consequences of a hearer's ignorance, without taking into account the causes of that ignorance, the hearer's character or intentions, whether they had the capacity to do better, or anything else. Dotson herself is inclined to take the example to demonstrate just how 'broad' the phenomena we should focus on are, and some support for that conclusion comes from some of the previous points we have raised about Fricker's account of testimonial injustice, which have suggested that it might be too narrow in certain respects. On the other hand, those who find it peculiar or problematic to say that the three-year-old has executed epistemic violence may want to take another look Fricker's account of testimonial injustice or look for middle ground between it and Dotson's account of testimonial quieting.²⁷

p. 309 In line with my general approach in this chapter, my aim is not to try to resolve this disagreement one way or the other. Rather, I just want to identify more clearly the aspects of Fricker's account that go beyond a minimal description of examples like our initial three into contentious theoretical territory. What might be particularly surprising here is that even thinking of those examples as exemplifying epistemic injustice in Fricker's sense carries us over this line.

2.2.5. The Primary Harm of Testimonial Injustice

Closely related to the previous point, testimonial injustice is a form of epistemic injustice, on Fricker's picture, because it involves a kind of disrespect to a speaker's epistemic agency (in their capacity as a sharer of knowledge) which is essential to and inherent in this form of injustice. In Fricker's own terminology, testimonial injustice has a *primary harm* which contrasts with a range of contingent *secondary* harms it may also have in a given example, and it is this primary harm that explains the sense in which testimonial injustice is always a kind of epistemic injustice: it specifies the way in which testimonial injustice involves one's being wronged in one's capacity as an epistemic agent.

Moreover, Fricker seems to hold in general that different varieties of epistemic injustice have a primary harm that both unifies all their instances as instances of that kind, and which explains the way in which each instance involves harm done to a person in their capacity as an epistemic agent. There's no argument in Fricker's work, that I can see, that this is how we should approach these issues, and it's a major commitment to take on, since one then needs to offer an account of the primary harm for each species of epistemic injustice and defend the claim that it is a feature of *every* example of that species. Providing plausible accounts of these primary harms has, to put things mildly, proved difficult.

In the case of testimonial injustice, Fricker's own proposal is that the primary harm involves a speaker being epistemically objectified and in particular treated as epistemically *inert*: as lacking epistemic agency.²⁸ Due to their prejudices, an audience fails to treat a speaker as a potential source of testimonial knowledge, but instead

treats them as a mere object from which they can glean information, as when one infers the age of a tree from its growth rings (2007: 132–133). However, not all cases of testimonial injustice seem to involve treating a speaker as lacking epistemic agency in anything like this manner.²⁹ More recent accounts of the primary harm have either tried to alter Fricker's account in terms of epistemic objectification so that it no longer has this implication (McGlynn 2020, 2021), or have proposed an alternative account of the primary harm according to which it involves a speaker being treated as an epistemic *other*: not simply disregarded as an inert object, but not fully recognized as a person in their own right either (Pohlhaus 2014; Davis 2016; Congdon 2017; Giladi 2017; ↵ Cusick 2019).³⁰ However, it remains very unclear that any single account will emerge as defensible from this ongoing debate, which I take to cast some doubt on Fricker's general philosophical approach here.

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2.2.6. Credibility Excesses

Credibility deficits involve a person getting less credibility than they ought when testifying. The opposite can also happen; a person can receive a *credibility excess*, where their audience awards them an undeservedly *high* degree of credibility. Suppose that someone receives a credibility excess due to prejudices held by their audience. Could this be a case of testimonial injustice? Fricker's characterization rules this out; as we have seen, testimonial injustices are, by definition, credibility deficits. This is no accident. In some of Fricker's earlier writings (e.g., Fricker 1998), she was explicitly open to the possibility that credibility excesses might be cases of testimonial injustice, and she deliberately distances herself from that position in her book. Her reason for this is that credibility excesses typically attach to people in positions of relative privilege, and tend to benefit those people even further. Fricker does acknowledge that someone who is rarely doubted or challenged may be epistemically harmed in the long term; the cumulative effect may be that they develop a kind of arrogance, for example. Moreover, Fricker is willing to accept that this may be a 'special case' of testimonial injustice (2007: 20–21). However, she wants to reserve the label for cases in which there is an immediate wrong done to the speaker in their role as an epistemic agent: in the terminology of section 2.2.5, she doesn't think prejudicial credibility excesses can manifest the primary harm of testimonial injustice, which is inherent and immediate rather than contingent or cumulative, and that's why they can only count as testimonial injustices in an attenuated sense.

Much of the subsequent literature has contended that Fricker grants too little significance to credibility excesses. There are two different versions of this point. According to the first version, Fricker doesn't sufficiently acknowledge the way that the credibility deficits some subjects face are bound up with the credibility excesses awarded to others. The second alleges that there are cases in which a subject faces a testimonial injustice *by being given a credibility excess* (and not merely because others receive a credibility excess relative to her). Let's take each version in turn.

When Fricker weighs up whether to include credibility excesses as testimonial injustices, she focuses entirely on how receiving such an excess bears on the situation and character of the person who receives it.³¹ In response, José Medina argues that Fricker's narrow focus on this particular individual leads her to miss epistemic injustices in cases of credibility excess (2013: 60). Credibility assessments are inherently *relative* ↵ and *comparative*, according to Medina, so that when a subject is given a credibility excess, others thereby receive a credibility deficit. Medina illustrates this by re-examining some details of Fricker's own example, the courthouse scenes in *To Kill a Mockingbird*. Medina argues that Tom Robinson's difficulties in being perceived as credible are partly due to the credibility excess that the white jury (and the courtroom more generally) grants to his principal accusers, Mayella and Bob Ewell, not to mention the prosecutor, Mr. Gilmer (2013: 65–66). Medina's claim that credibility assessments are implicitly comparative in this way has been influential, particularly on feminist philosophers who have appealed to the notion of testimonial injustice to explain some of the dynamics that often occur when women accuse relatively privileged and powerful men of sexual assault. In stark contrast to a disabled, poor Black man like Tom Robinson, such men are frequently given, not just the benefit of the doubt, but outsized levels of sympathy and credibility—what Kate Manne (2018) calls 'himpathy'.

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Given Medina's points about the comparative character of credibility assessments, the credibility excesses received by such men when they are accused of sexual misconduct is bound up with the corresponding credibility deficits experienced by their accusers (Yap 2017; Manne 2018: ch: 6). However, Medina's analysis, particularly as applied to Tom Robinson's trial, has also been challenged; Tommy Curry (2017) has argued that the credibility deficit faced by Robinson, as a disabled Black man, is *not* entirely comparative, and doesn't rest on the jury and the audience investing his white accusers, the Ewells, with any real credibility whatsoever. Rather, Robinson can't share his knowledge of his innocence with his audience because, for most of them, he speaks as an untrustworthy rapist and a particular danger to white women like Mayella Ewell: such were the powerful images of Black men, including disabled Black men, that were operating in the postbellum South (and which are still ubiquitous today).

Medina's objection to Fricker is in some ways concessive to her position, in some ways a radical departure. It's concessive in that it doesn't try to show that cases of credibility excess can manifest the primary harm of testimonial injustice, which we saw is Fricker's own reason for not including them. It's a radical step away from Fricker's picture in that it abandons the focus on immediate harms done to the speaker, advocating instead a more holistic evaluation of testimonial interactions between people whose roles shift back and forth between speaker and hearer across temporally extended periods, and with attention to the wider social contexts and histories of these exchanges (Medina 2013: 60).

As we've already noted, there's also room for a challenge that preserves Fricker's idea that genuine cases of testimonial injustice will involve an inherent and immediate (rather than cumulative) wrong done to the speaker, but contends that some cases of prejudicial credibility excess meet this condition. What would this look like? Emmalon Davis (2016) has appealed to cases in which a so-called 'positive stereotype' associated with a particular social group means that particular speakers who belong to that group are treated as overly authoritative on certain subjects, or when one person is treated as a kind of 'spokesperson' for the whole group. Imagine, for example, an Asian American student who is assumed to be able to provide the correct answers to any mathematics ↵ homework questions due to stereotypes.³² Or consider the phenomenon pointed out by bell hooks, whereby the testimony of one Black person is taken to be representative:

All too often in our society, it is assumed that one can know all there is to know about black people by merely hearing the life story and opinions of one black person.

(2015: 11)

There may be cumulative epistemic harms associated with this kind of treatment; for example, the student may lose confidence in her own mathematical abilities, due to being unable to live up to the unfairly elevated expectations being imposed on her. But Davis's point is that there seems to be an immediate and inherent harm done to the speaker in her role as an epistemic agent. Exactly how to characterize this harm is a matter of some dispute, related to our discussion in section 2.2.5 of how or whether to repair Fricker's account of the primary harm of testimonial injustice. However, Davis's discussion suggests one plausible answer. The speakers in her examples are not treated as having anything distinctive to contribute by their testimony. Rather, they're treated as representative of a group of people who are treated as homogeneous rather than as individuals with distinctive contributions to share; they're treated as epistemically *fungible* (Davis 2016: 488; see also McGlynn 2020 and 2021). This suggests that Fricker was wrong to revise her views on whether credibility excesses can be genuine examples of testimonial injustice, even if we maintain the idea that this involves an immediate and inherent harm done to the speaker.³³

3. Hermeneutical Injustice

Let's approach Fricker's account of hermeneutical injustice the same way we approached her discussion of testimonial injustice, starting by getting some of her examples onto the table. The first two we'll consider are both real-life cases taken from Susan Brownmiller's memoir of the second-wave feminist moment, *In Our Time: Memoir of a Revolution* (2000). One concerns Carmita Wood, who was, as we would now put it, sexually harassed by a professor as she worked as a lab assistant and later as an administrator in the Nuclear Studies Lab at Cornell University in the early 1970s. On Brownmiller's account of the events, Wood wasn't able to say exactly what it was about the professor's behaviour that was impacted so negatively on her, and this led to all kinds of harms that compounded the original harassment; Wood suffered stress, and had her claim for unemployment insurance rejected after she walked out, as she couldn't articulate why she had left. Later a group of women, including the two lawyers who took on the appeal against Wood's rejected employment insurance claim, held a brainstorming session where they attempted to remedy the lack of expressive and conceptual resources. A member of the group, Karen Sauvigné, described the breakthrough moment as follows:

We wanted something that embraced a whole range of subtle and unsubtle persistent behaviors. Somebody came up with 'harassment'. *Sexual harassment!* Instantly we agreed. That's what it was.

(Brownmiller 2000: 281, quoted in Fricker 2007: 150)

The other example that Fricker takes from Brownmiller's memoir involves a woman, Wendy Sanford, who had been suffering from postpartum depression. However, lacking this notion, Sanford had taken herself to be failing at being a parent due to her own deficiencies (and had been joined in that negative assessment of herself by her husband). During a MIT workshop on medical and sexual issues facing women, Sanford was taught about postpartum depression, thereby coming to understand her own experiences, and to recognize that they were shared by many other women and weren't at all her own fault (Brownmiller 2000: 182 and Fricker 2007: 149).

What do these examples have in common? As Brownmiller tells their stories, both women were having experiences which they didn't know how to accurately describe, to themselves or to others, due to lacking adequate descriptive resources. Since it was in their interests to be able to describe these experiences, both women suffered a number of harms and setbacks as a result of these obstacles. They seem to differ, though, in how that lack of resources was remedied (Goetze 2018: 77). At least on one way of interpreting what happened in Carmita Wood's example, suitable descriptive resources were created—coined—in the meeting recounted by Brownmiller, later achieving wider uptake. In contrast, it's natural to think that Wendy Sanford had the good fortune to encounter a group that could initiate her into an already existing practice that offered an apt description for her experiences; she encountered the notion of postpartum depression as part of its gaining wider currency.

3.1. Fricker's Account of Hermeneutical Injustice

Fricker presents these two examples as illustrations of the second species of epistemic injustice she identifies, hermeneutical injustice. According to Fricker, the women in both examples struggle to interpret their own experiences due to a lack of apt or fitting conceptual resources, and this gives rise to gaps in their self-understanding.³⁴ They also face obstacles when trying to communicate these experiences and their significance to others, due to the unavailability of apt conceptual and expressive resources.³⁵ There was, as Fricker puts it, a dearth of suitable *hermeneutical resources*. Moreover, as already emphasized, the experiences in question are ones which it is very much in the interests of Wood and Sanford to understand and communicate: to make intelligible to themselves and to others. But what makes these obstacles to intelligibility *injustices*? Concerning Wendy Sanford, Fricker writes:

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No doubt there is a range of historical-cultural factors that might help explain this particular lack of understanding—a general lack of frankness about the normality of depression, for instance—but in so far as significant among these explanatory factors is some sort of social unfairness, such as a structural inequality of power between men and women, then Wendy Sanford's moment of truth seems to be not simply a hermeneutical breakthrough for her and for the other women present, but also a moment in which some kind of epistemic injustice is overcome.

(2007: 149)

Fricker introduces the notion of hermeneutical marginalization in order to explain how background 'social unfairness' might bear on a subject's ability to understand and communicate her own experiences. One aspect of this kind of background inequality is that certain social groups will tend to be excluded from the kinds of jobs, institutions, and practices that play the largest roles in determining what hermeneutical resources are shared within a community. Fricker mentions journalism, academia, politics, and the law here (2007: 152, 155–156), though we might also add executive positions within the entertainment industry, including Hollywood and the music industry, leadership positions within religious organizations, and much more besides. Due to the underrepresentation or exclusion of oppressed social groups in these roles, institutions, and practices, a society's hermeneutical resources will tend to be skewed, so that those resources serve the interests of those who are already privileged, and work against those who are not.³⁶

I'll work with the following characterization of hermeneutical injustice, designed to capture the main features of Fricker's treatment of the examples we've looked at so far: hermeneutical injustice occurs when subjects face difficulties in making their social experiences intelligible, either to themselves or to others, where these difficulties are due to belonging to a group that has been hermeneutically marginalized.

p. 315 **3.2. Distinctive Aspects of Fricker's Account of Hermeneutical Injustice**

As we did with Fricker's account of testimonial injustice, let's examine some of the distinctive aspects of her treatment of the two examples she uses to illustrate hermeneutical injustice. These overlap with some of the points we looked at above, bringing out some ways in which Fricker's accounts of testimonial and hermeneutical injustice are unified—for better or worse.

3.2.1. Purely Structural versus Perpetrated

However, let's first consider one aspect of Fricker's account of hermeneutical injustice that's a marked contrast to how she thinks about testimonial injustice. Fricker holds that testimonial injustice has perpetrators or 'culprits'; in the examples we looked at above, these are primarily Herbert Greenleaf, the jurors in Tom Robinson's trial, and Patricia Williams's sceptical audiences respectively. To say this much is not yet to say that these characters or people are fully responsible for the injustices they have perpetrated or that they are blameworthy; indeed, Fricker argues that Greenleaf is not blameworthy for his dismissive treatment of Sherwood.³⁷ Nor, relatedly, is holding that testimonial injustice has perpetrators a denial that it has structural aspects which transcend and partly explain the behaviour, attitudes, and responses of individual agents. In its systematic form, testimonial injustice happens against a background of prejudices that have permeated society, and the proliferation and maintenance of these prejudices is a matter of how society is organized and operates, so we cannot understand the central case of testimonial injustice without some attention to structural matters.³⁸

Even with these points made, Fricker's view of hermeneutical injustice is markedly different. In cases of hermeneutical injustice, there are *no* perpetrators or culprits, according to Fricker: there's only the structural/institutional phenomenon of hermeneutical marginalization and its consequences, which unjustly

bear much more heavily on some people than others. Hermeneutical injustice, for Fricker, is always ‘purely structural’ (2007: 159).

p. 316 This thesis seems much more plausible for some examples of hermeneutical injustice than others, suggesting that Fricker may have overgeneralized. Consider again the difference between her two initial examples, Carmita Wood and Wendy Sanford.³⁹ That ↵ Wood lacked the hermeneutical resources she needed is perhaps plausibly a purely structural matter, to do with how society’s collective resources had been shaped by the long-standing marginalization of those most affected by sexual harassment. It’s not clear that we can say the same about Sanford; that she hadn’t been introduced to the notion of postpartum depression at a prior point might have been purely down to structural forces, but there seems to be room, in principle at least, for it to have been partly—perhaps even primarily—a matter of manipulation by particular agents.⁴⁰ Suppose Fricker is right that when Sanford acquired the hermeneutical resources she needed, this was ‘a moment in which some kind of epistemic injustice [was] overcome’. If someone had intentionally prevented her from having this moment, keeping the hermeneutical resources out of her reach even though they were circulating already through pockets of society, would they not have perpetuated a hermeneutical injustice against her? If not, why not?⁴¹

José Medina argues in a different way that Fricker’s claim that hermeneutical injustice is always purely structural seems to overgeneralize from examples like Carmita Wood. In that example, at least as Fricker presents it, Wood lacks both the conceptual resources to attain self-understanding of what has happened to her and the expressive resources to communicate those experiences accurately to others; the meeting described by Brownmiller is meant to have rectified both gaps simultaneously, introducing an expression that picks out an apt concept, making that concept available in thought and shareable in language. But Medina points out that Fricker accepts that hermeneutical injustice can sometimes involve only the second, expressive lack.⁴²

In Fricker’s 2007 book, for example, she allowed that a hermeneutical injustice might involve hermeneutically marginalized subjects who are unable to make themselves intelligible due to the way that they express themselves not being recognized as a legitimate hermeneutical resource (2007: 6, 160). So Fricker recognizes that hermeneutical injustice can take the form of obstacles to making oneself ‘communicatively intelligible’ to others, rather than obstacles to making one’s experiences intelligible to oneself. However, this point is not p. 317 much further developed in Fricker’s discussion, and Medina ↵ notes that, having made this observation, Fricker sometimes slips back to writing as if hermeneutical injustice is fundamentally about ways that self-understanding can be unfairly impeded (Medina 2013: 100–101).

Moreover, Medina charges that Fricker has missed the import of this point for the issue raised above, concerning whether hermeneutical injustice is a purely structural form of injustice. After all, cases of hermeneutical injustice involving obstacles to someone making themselves communicatively intelligible involve structural factors—in particular hermeneutical marginalization—but also involve audiences who can do better or worse in recognizing and mitigating the effects of such marginalization when engaging with what speakers are trying to say (2013: 110–111).⁴³ Some people are particularly ineffectual or callous in this regard; Medina thinks that such people are naturally and rightly thought of as perpetrators and ‘culprits’ of hermeneutical injustice.⁴⁴

Similarly, Gaile Pohlhaus Jr. discusses examples of what she calls *willful hermeneutical ignorance*, which involve members of dominant groups refusing to acknowledge and employ hermeneutical resources that have been developed by oppressed groups in order to render their experiences intelligible; indeed, Pohlhaus (2012: 724–731) argues that Tom Robinson faces this kind of injustice at his trial in addition to the testimonial injustices highlighted by Fricker. Despite the suggestive name, Pohlhaus suggests that willful hermeneutical ignorance is a form of epistemic injustice distinct from hermeneutical injustice as Fricker understands it (2012: 734 n. 6), precisely on the grounds that Fricker insists that the latter is always purely structural, and willful hermeneutical ignorance clearly is not. However, given that Fricker’s claim has been questioned on other

grounds, it seems more natural to treat Pohlhaus's notion as a subspecies of hermeneutical injustice, one that further illustrates the ways in which hermeneutical injustice can be perpetrated.

3.2.2. Injustice versus Luck

p. 318 One important parallel with Fricker's treatment of testimonial injustice is the dichotomy she imposes between genuine cases of hermeneutical injustice and cases of epistemic bad luck. Fricker asks us to contrast her examples of hermeneutical injustice with someone who develops a medical condition affecting their social behaviour that is unnamed and misunderstood by their society. According to Fricker, such a person suffers a 'hermeneutical disadvantage' in being unable to understand and communicate ↪ their experiences, but 'they are not subject to hermeneutical injustice; rather, theirs is a poignant case of circumstantial epistemic bad luck' (2007: 152). This feature of Fricker's account is controversial, just as Fricker's contrast between testimonial injustice and epistemic bad luck is. Shelley Tremain argues that in drawing a contrast between this example and Wendy Sanford's undiagnosed postpartum depression, Fricker seems to assume that having an undiagnosed and unrecognized condition which leads to difficulties in social interactions is not itself a hermeneutically marginalized identity. Against this assumption, Tremain contends that

the detrimental consequences that accrue to these people are produced by precisely the sort of background conditions from which Fricker claims that a hermeneutical disadvantage must result in order to qualify as a form of hermeneutical injustice.

(2017: 178)

So while Fricker thinks it's just a matter of bad luck that the condition in this kind of example has gone undiagnosed and unnamed, Tremain is countering that this lack of hermeneutical resources is an aspect of a broader set of injustices faced by people struggling with conditions which are observed but not understood by the wider public.

Dotson, in contrast, concedes that Fricker may be right that the sufferer of the unnamed medical condition doesn't suffer hermeneutical injustice, but she thinks that the point lacks the significance Fricker accords to it. Dotson (2012, 2014) proposes that there's a related form of epistemic injustice, which she calls *contributory injustice*, and she contends that Fricker's example plausibly fits her definition. Contributory injustice involves a speaker struggling to make herself intelligible because she's using hermeneutical resources—concepts, expressions, and so on—which are not used by or recognized as valid by her broader community, including her audience, and where this refusal to acknowledge and use these resources is the result of that audience's 'situated ignorance': ignorance which 'follows from one's social position and/or epistemic location with respect to some domain of knowledge' (2011: 248). Dotson thinks that Fricker has overlooked this form of epistemic injustice for a number of reasons, primarily because of where Fricker draws the line between epistemic injustice and epistemic bad luck, and her apparent assumption that a society's collective hermeneutical resources exhaust the hermeneutical resources drawn on by members of that society.⁴⁵ In the case of someone suffering from a nameless illness, Dotson suggests that realistically the person is very unlikely to be left for long in the same epistemic situation as the rest of their community; they are going to develop resources to think and talk about their symptoms and social experiences connected to their illness. They'll then face contributory injustice if they try to make themselves intelligible to others, and struggle due to the fact that their audience resists recognizing any hermeneutical ↪ resources beyond those already part of the community's shared, dominant resources (2012: 40).⁴⁶

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3.2.3. Incidental Hermeneutical Injustice

One aspect of Fricker's account of testimonial injustice that we mentioned briefly above, but didn't discuss in any detail, is that she holds that there can be incidental cases. In her example, a philosopher of science experiences identity-prejudicial credibility deficits when attending a science conference, even though there's no general pattern of social injustice faced by philosophers of science just in virtue of sharing that identity. Fricker similarly holds that there are incidental cases of hermeneutical injustice, but here things quickly get more complicated and controversial.

The main problem is that it's hard to see how there can be room for incidental cases of hermeneutical injustice given that, by definition, this is due to hermeneutical marginalization. This suggests that hermeneutical injustice is always an aspect of larger systematic and widespread injustices; on the face of it, there's no analogue of the kind of local injustice illustrated by the philosopher of science at the conference. However, Fricker thinks otherwise, writing that a person who belongs to a relatively privileged social group can be hermeneutically marginalized 'fleetingly and/or in respect of a highly localized patch of the subject's experience' (2007: 156). Moreover, her definition of hermeneutical marginalization makes room for this possibility:

Let us say that when there is unequal hermeneutical participation with respect to some significant area(s) of social experience, members of the disadvantaged group are *hermeneutically marginalized*.

(2007: 153)

One perhaps surprising upshot of this definition is that a person can be hermeneutically marginalized with respect to some of their significant social experiences, but not others. This is a consequence that Fricker embraces (2007: 153–154), writing that 'the complexity of social identity means that hermeneutical marginalization afflicts individuals in a differentiated manner; that is, it may afflict them qua one social type, but not another' (2007: 154). It also allows that there can be individuals who are hermeneutically marginalized with respect to a small sliver of their social experiences, despite belonging to a dominant social group who are mostly able to enjoy a high degree of hermeneutical participation; this is what Fricker has in mind when she writes, as quoted above, that a person can be 'fleetingly' hermeneutically marginalized, and it's what allows room for incidental cases of hermeneutical injustice in her picture. She offers the example of Joe Rose, the main character in Ian McEwan's novel *Enduring Love* (McEwan 1997). As Fricker presents the novel, Rose struggles to understand or convey his experiences of being stalked by Jed Parry, a sufferer of de Clerambault's syndrome (erotomania) which causes him to believe that Rose is in love with him and that it is God's will for them to be together. Rose isn't a member of any social group that would count as hermeneutically marginalized; as Fricker puts it, 'his social identity is that of the proverbial white, educated, straight man' (2007: 157). When it comes to Rose's experiences of being stalked by Parry, however, he does count as hermeneutically marginalized, albeit a fleeting or 'one-off moment' of marginalization.⁴⁷

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On an alternative picture of hermeneutical marginalization, the one that a lot of people mistakenly attribute to Fricker, it involves certain social *groups* being discriminated against so that they are almost entirely excluded from certain professions, roles, organizations, and practices which have an outsized role in determining the shape and contents of a society's communal hermeneutical resources; I gave some examples of these above. Since these locations are where the action is, when it comes to shaping a society's communal hermeneutical resources, those resources tend to be skewed in a way that favours the interests of the socially dominant: those who aren't hermeneutically marginalized in this manner. On this alternative picture of hermeneutical marginalization, there doesn't seem to be any room for incidental cases of hermeneutical injustice. The obstacles to making his experiences intelligible faced by Joe Rose, for example, are genuine, but on this conception they're not due to him being hermeneutically marginalized.

We might suggest instead that examples like Joe Rose involve a kind of hermeneutical ‘friendly fire’, to coin a terrible phrase. Since their experiences are atypical for dominantly situated group members, they find themselves facing the same obstacles as members of hermeneutically marginalized groups, in particular women.⁴⁸ That’s to say, they face obstacles to making their experiences intelligible because the people who much more typically have those kinds of experiences are hermeneutically marginalized, and so the resources they need aren’t widely shared throughout their society. On this account, someone in Joe Rose’s position doesn’t face a hermeneutical injustice, but rather a kind of epistemic bad luck; the communal hermeneutical resources in his society are general skewed *in favour* of the social group he belongs to, but he has the misfortune to be an anomaly, facing situations that members of his social group tend to inflict on others rather than experience themselves.⁴⁹

p. 321 Whether this sketch can be developed into a satisfactory and general account of such putative examples of incidental hermeneutical injustice remains to be seen, and I won’t pursue this project further here. The point for now is that there are at least two possible conceptions of hermeneutical marginalization, one on which it is primarily entire social groups who are victim to it, and the other on which individuals can be marginalized with respect of some of their significant social experiences; the differences between these come out most clearly over the question of whether there can be cases of incidental hermeneutical injustice. Moreover, contrary to what’s often supposed, Fricker’s own account of hermeneutical marginalization is the second of these rather than the first.

Which is to be preferred? Without attempting to resolve this tricky question here, I want to raise two quick concerns about Fricker’s preferred characterization of hermeneutical marginalization. First, I find Fricker’s suggestion that an individual can be hermeneutically marginalized (or not) puzzling and hard to make sense of. The idea that some social groups might have more power than others to shape our communal hermeneutical resource by having greater access to participating in the practices and institutions that play the biggest role in shaping those resources seems clear enough, even if there are details and tricky examples to work through. In contrast, I find Fricker’s talk of fleeting ‘localized’ or ‘one-off’ instances of hermeneutical marginalization and of individuals being able to, or being blocked from, ‘framing meanings’ (2007: 154) that render their experiences intelligible mysterious and puzzling, and I don’t find much in Fricker’s discussion that helps me to make sense of it.⁵⁰

A perhaps less subjective point is that it’s difficult to see the principle behind some of the judgements about the precise scope of hermeneutical injustice that Fricker relies on in building her account. Recall from the discussion in section 3.2.2 that Fricker argues that a group of people suffering from a mystery illness aren’t hermeneutically marginalized, and so aren’t subject to a hermeneutical injustice but are rather just a ‘poignant case of circumstantial epistemic bad luck’ (2007: 152). Rose occupies a relatively dominant social position, yet Fricker counts him as hermeneutically marginalized (albeit ‘fleetingly’ or in a ‘localized’ sense) and so as subject to a genuine hermeneutical injustice. She doesn’t, however, extend any of the same considerations to the group suffering from the unnamed illness; as we’ve seen, for Fricker they don’t count as hermeneutically marginalized at all, not even in this ‘localized’ manner. It’s very hard to see ↪ what principle is meant to underwrite Fricker’s particular combination of verdicts here about who is hermeneutically marginalized, and so subject to hermeneutical injustice rather than merely being the victim of epistemic bad luck.⁵¹ That’s not enough to show that Fricker’s treatment of this case, and her associated claims about hermeneutical marginalization and the possibility of incidental hermeneutical injustice are mistaken, but it might make us slow down and consider them and the alternatives more carefully.

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3.2.4. Hermeneutical Injustice as Epistemic Injustice, and Its Primary Harm

In my discussion of testimonial injustice, I stressed that Fricker's claim that it is a species of epistemic injustice as she defines it is not as trivial as it might appear. Moreover, Fricker seems to hold that each subspecies of epistemic injustice involves a primary, essential wrong done to a person in their capacity as an epistemic agent: a wrong present in every instance of that injustice which unifies those instances and explains why the injustice in question really is a form of epistemic injustice in Fricker's sense. These general views about epistemic injustice seem present in Fricker's discussion of hermeneutical injustice too. The situation with respect to hermeneutical injustice is a little different, though, and it seems even less favourable to Fricker's overall approach.

As we saw in section 2.2.5, when it comes to testimonial injustice, there are several proposals about the nature of the primary harm in the literature (including Fricker's own), and the problem is mostly that none of these candidates seems entirely satisfactory. With hermeneutical injustice, in contrast, the problem (in my view) is that there isn't even a single *prima facie* plausible candidate on the table to begin with. Fricker's own remarks on this issue (see 2007: 7, 162, 168) are fragmentary and don't cohere very well, but more importantly, most of them don't add anything to what's already present in her *characterization* of hermeneutical injustice. The latter point also trips up Goetze's attempt to offer a more unified account based on Fricker's various remarks:

I propose that the primary harm of hermeneutical injustice is that *the subject has some distinctive and important social experience that at some crucial moment lacks intelligibility*.

(2018: 79)

p. 323 This plausibly captures something of what hermeneutical injustice *is*, but it's unclear how it adds anything more than that; it doesn't seem to offer anything that remotely parallels Fricker's account of the primary harm of testimonial injustice in terms of epistemic objectification (or its rivals).⁵² Paul Giladi (2017) offers a unified account of the primary harms of testimonial and hermeneutical injustice, drawing on some of Fricker's own remarks about how both varieties have the power to impede a person in 'becoming who they are' (2007: 168). However, such harms are clearly contingent and cumulative; not every case of testimonial or hermeneutical injustice involves a person being prevented from 'becoming who they are', though this may be the effect of facing repeated, systematic injustices of this sort.⁵³ These are more plausibly candidates to be (particularly deep and serious) *secondary* harms, rather than primary harms in Fricker's sense.

I'm not convinced that there has been any progress to date made in identifying the primary harm of hermeneutical injustice; the existing attempts either add nothing to statements of what hermeneutical injustice is, or focus on harms which seem clearly contingent and cumulative, and so secondary rather than primary. This, to my mind, puts serious pressure on Fricker's general approach to epistemic injustice, given the role it accords to such primary harms.⁵⁴

4. Concluding Remarks

In this chapter, I have clarified how Fricker understands epistemic injustice, and taken a detailed critical look at Fricker's views on the two phenomena she identifies as subspecies of epistemic injustice, so understood. I have been keen to effect an initial separation between the phenomena illustrated by Fricker's examples of each and her own theoretical account of those phenomena, emphasizing some of the main junctures at which we might take issue with Fricker's picture and examining what alternatives might look like. I haven't tried to argue for or against Fricker's picture, though I suspect the reader will have picked up the sense that I'm sympathetic to some aspects of Fricker's views, but unclear how others might be defended or repaired in light of the problems that her critics have drawn attention to. Despite this, my principal goal throughout has been to pinpoint the places where further investigation and discussion seem most necessary, rather than to push a particular stance.

The approach I have taken in this chapter has left a number of major theoretical issues concerning epistemic injustice relatively untouched. For one thing, the literature on testimonial and hermeneutical injustice generated by Fricker's work has suggested that both are much broader and varied than her initial stock of examples might suggest, and I haven't attempted to convey much of that breadth here.⁵⁵ Second, I haven't touched ↵ questions about the relationship between testimonial and hermeneutical injustice, beyond pointing out some similarities and differences identified by Fricker; in particular, I've sidestepped issues about the degree to which they are entangled with one another, whether one is more fundamental than the other or somehow reduces to the other, and so on.⁵⁶ My focus on testimonial and hermeneutical injustice means I also haven't considered whether there are any other plausible candidate species of epistemic injustice (though my critical remarks about the role of primary harms in Fricker's picture does raise some questions about how any such candidates are to be assessed). I've broached some of the difficult and complex moral issues about the degree to which people are responsible and blameworthy for testimonial and hermeneutical injustice, but these issues stand in need of detailed and sustained engagement of a sort I haven't tried to give them here. Perhaps the most obvious omission has been any sense of what we might do to try to mitigate or eliminate epistemic injustice and the harms it involves.⁵⁷

My hope is that the present chapter, with its narrower focus, will help us get clearer on some of the foundational questions about the nature of epistemic injustice (and whether this is even the right framework in which to approach the phenomena we're interested in here), before we engage more seriously with even trickier issues.⁵⁸ It also needs to be stressed that these topics aren't just—or even primarily—of theoretical interest, and the literature already contains too many attempts to apply these philosophical accounts and frameworks to real-life and significant issues to usefully survey. My hope is that these more practically directed aspects of discussions of epistemic injustice can also benefit from greater clarity about what's involved in adopting Fricker's framework, and from consideration of some of the ways we might approach these important issues differently.

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Notes

- 1 See also Gerken 2019 and McGlynn 2021. Hookway 2010 argues that we exercise our epistemic agency in lots of ways that have little to do with testimony, and so that discussions of epistemic injustice need to broaden their focus.
- 2 On epistemic norms of assertion, see Kelp and Simion this volume.
- 3 This is, at least, the standard interpretation of the story in the literature on epistemic injustice, following Fricker; see Curry 2017 for some well-taken doubts.
- 4 The example recounted by Williams was originally one of Fricker's illustrations of testimonial injustice (1998: 170), following Lorraine Code (1995: 69), but by her 2007 book, Fricker focuses instead on the two fictional examples.
- 5 It's hard to find explicit examples of this kind of attitude to Fricker's work in print; however, it's my impression that it has gained some currency recently, and so it's worth addressing. An earlier draft of this chapter gave an overview of some these earlier contributions to the topic of epistemic injustice, but it proved impossible to do them justice in the available space; I rectify this limitation, offering citations and discussion, in McGlynn (in preparation). In the meantime, see Medina 2021: 409–411 and the references in Dotson 2011: 252 and 2012: 29, 44 n. 24; Ivy 2016: 438–439; and Berenstain 2020: 755 n. 29.

- 6 That Fricker's definition of testimonial injustice only requires prejudice, and not specifically identity prejudice, has been mostly missed or ignored in the subsequent literature (including by me—thanks to Lochlann Atack here).
- 7 Tremain (2017) and Curry (2017) both argue that Fricker and others fail to do justice to the role played by Robinson being a *disabled* Black man.
- 8 Perhaps it's debatable that Marge Sherwood really has knowledge to back up her accusations against Ripley; I won't get into that complication here.
- 9 I take ignorance here and throughout to involve not knowing (though I recognize that some epistemologists have wanted to reserve the term for cases in which one's lack of knowledge isn't due to one's having a false belief). There's another issue lurking in the notion of a 'credibility deficit', which I haven't discussed here for reasons of space and because it is taken up elsewhere in this handbook, in Jon Matheson's chapter on evidentialism. What determines how much credibility a speaker *ought* to receive, with respect to which credibility deficits and excesses are measured? This is usually left vague, but in one place Fricker specifies that the hearer ought to match how much credibility she attributes to the speaker 'to the evidence that he is offering the truth (2007: 19). This account of credibility deficits (and excesses) has been criticized by Katherine Hawley (2014, 2017), Jennifer Lackey (2018, 2023: ch. 1), Berislav Marušić and Stephen White (2018) and Sandy Goldberg (2022): see McGlynn 2024 for a sympathetic reconstruction and discussion of Hawley's objection, and Matheson's chapter in this volume for a critical discussion of Lackey's objections.
- 10 See McGlynn 2021: 163 for different examples of this sort.
- 11 Fricker explicitly allows for cases in which a speaker receives a testimonial injustice, though her testimony is still believed (2007: 17).
- 12 Epistemologists disagree on what is required for a belief to be properly based / well founded, though on one standard way of thinking, it involves grounds sufficient to justify a belief playing a causal or explanatory role in the formation or retention of one's belief.
- 13 Compare also Collins 2000: ch. 11.
- 14 Dotson also introduces the notion of *testimonial smothering*, which involves (to a first approximation) socially disadvantaged speakers self-censoring on certain topics around certain audiences, in particular audiences who have failed to demonstrate that they can be relied on to react to testimony on those topics in a way that's appropriate and which does not expose the speakers to unnecessary risks (2011: 244–251).
- 15 See Jennifer Lackey's chapter in this volume for relevant discussion of different ways people can fail to be known.
- 16 See McGlynn 2019: 266 for some examples.
- 17 These mechanisms have been the subject of much recent work by epistemologists, taking as its starting point Charles Mills's treatment of active white ignorance (e.g., 1997, 2007). See Peels and Lagewaard's chapter in this volume for further discussion.
- 18 On this second picture, the audience's judgment that the speaker fails to know seems itself prejudicial; the audience prejudges the issue of whether the speaker knows, due to their ignorance. That's compatible with holding that this judgment isn't rooted in other prejudices, in the way that it would be on Fricker's picture, where the audience's overly low credibility judgment is due to their holding other prejudices about the speaker's social identity, rather than merely being ignorant about it. Thanks to Jade Fletcher for encouraging me to clarify this point. Bain 2022 discusses a related issue, but her concern is not how we should think about testimonial injustice, but more generally whether we should adopt an 'ignorance-first' approach rather than one that takes epistemic injustice to be a more explanatorily fundamental notion.
- 19 This is a simplification, likely an oversimplification, of Dotson's account of what she calls 'reliable' ignorance (2011: 241).
- 20 More generally, Fricker holds onto a dichotomy between epistemic injustice and epistemic bad luck, as emphasized in Dotson 2012; we'll come back to this in the discussion of hermeneutical injustice below. To say that Fricker draws a dichotomy here is not to claim that she thinks that genuine cases of epistemic injustice can feature *no* elements of epistemic bad luck whatsoever (just as in mainstream epistemology, the popular slogan that knowledge excludes luck tends to be shorthand for claiming that it excludes *particular kinds* of luck, rather than luck of any sort: see, e.g., Pritchard 2005: chs. 5 and 6). For example, Fricker thinks that Herbert Greenleaf is subject to circumstantial epistemic bad luck; his credibility judgment concerning Sherwood is rooted in prejudice, and so counts as a genuine instance of testimonial injustice, but he has the bad luck of being in a society in which sexist prejudicial stereotypes are so pervasive and uncritically accepted that he can't really help being subject to their influence (2007: 33, 103). The kind of epistemic bad luck that's important for Fricker's dichotomy is rather opposed to something being prejudicial. In the case of testimonial injustice, this yields a dichotomy between credibility deficits that are prejudicial and those that are merely due to epistemic bad luck (hence the close connection to the previous point discussed in the main text). As we'll see in more detail in section 3.2.2, in the case of hermeneutical injustice the relevant dichotomy is between gaps in our collective hermeneutical resources that are due to the marginalization of certain social groups and those that are merely due to bad epistemic luck. It's these dichotomies that are at issue here and below.
- 21 Fricker credits this example to Penelope Mackie.

22 Fricker's other example involves a scrupulously honest used-car salesman (2007: 42).

23 Maitra bills her example as suggesting that there can be cases of testimonial injustice that don't involve identity prejudices (2010: 202, 205), but I noted in section 2.1 that Fricker already doesn't require identity prejudices for testimonial injustice. I take the interesting question to be rather whether Maitra has offered plausible cases of testimonial injustice which don't rest on *any* relevant prejudices.

24 See Dotson 2012: 39 for an alternative take on the moral of Maitra's example.

25 Compare Dotson 2012.

26 Fricker takes testimonial injustice to involve a speaker being wronged specifically in their capacity as a 'giver of knowledge' (2007: 45), as we saw in our initial discussion of her account in section 2.1. Strangely, she has stuck with this formulation even after generalizing her conception of epistemic injustice from wrong done to one in one's capacity as a knower to wrong done to one in one's capacity as an epistemic agent (e.g., Fricker 2013: 1320); for criticism, see McGlynn 2021.

27 The language of 'executing' epistemic violence is Dotson's own: see 2011: 251. In some places, Dotson suggests adopting a 'pluralist' approach to epistemic injustice, employing Fricker's account or her own (or some alternative) depending on what one is interested in and trying to achieve (e.g., Dotson 2012: 42).

28 On Nussbaum's influential analysis of objectification, adopted by Fricker, treating someone as inert—as lacking agency—is one (but only one) way to treat them as an object (Nussbaum 1995).

29 This point has been widely argued in the literature: e.g., Medina 2013; Pohlhaus 2014; Davis 2016; Congdon 2017; Hawley 2017; and McGlynn 2020, 2021, 2024.

30 There are a lot of significant internal differences between the philosophers in this second camp which I'm skating over here; see McGlynn 2020 for discussion.

31 This was something we noted when contrasting Fricker's account with Dotson's in section 2.2.4; unlike Fricker, Dotson is interested in whether harm was done, and doesn't attach any particular significance to whether that harm was done to the speaker.

32 For discussion of these so-called 'positive' stereotypes and how they can be harmful, see Oluo 2018: ch. 14.

33 Other important examples of credibility excesses that seem to involve an inherent harm to the speaker are explored in recent work by Jennifer Lackey (2020, 2023) and Catalina Carpan (2022).

34 For a more precise account of what it is for a concept to be apt or fitting see Fraser 2018: 735–738, though Fraser stresses that she thinks that alternative accounts are not only possible, but may be needed for different purposes.

35 This analysis of the example has been disputed in Mason 2011 and Berenstein 2020. Catala (2020: 761–762) notes that women like Wood may have all kinds of knowledge in such examples, even if they lack the conceptual resources to have certain items of *propositional* knowledge. For a fuller discussion that vindicates some of these concerns with Fricker's interpretation of the example, see the chapter on hermeneutical injustice in McGlynn (in preparation).

36 Fricker's notion of hermeneutical marginalization is somewhat anticipated in Friedan 1963 and Collins 2000, though as we'll see shortly, Fricker's specific characterization is distinctive (and peculiar). See Simion 2019 for an argument that hermeneutical injustice need not be due to hermeneutical marginalization.

37 Fricker 2007: 89, 100–105; see footnote 20 of this chapter for relevant discussion. Strikingly, Fricker reaches a different conclusion about the jurors in Tom Robinson's trial (2007: 89–90): see Piovarchy 2020 and McKenna 2023: ch. 7 for discussion and criticism of Fricker's stance here.

38 See Maitra 2010: 207 and McGlynn 2020: 839.

39 I owe the point to follow to a number of students who have made it against Fricker's position in class. Fricker arguably obscures the difference between the example of Carmita Wood and this one when she writes in the passage quoted above in the main text: 'Wendy Sanford's moment of truth seems to be not simply a hermeneutical breakthrough for her and for the other women present, but also a moment in which some kind of epistemic injustice is overcome' (2007: 149). That makes this moment sound a lot like the collective 'that's what it was' moment Karen Sauvigné describes when Lin Farley's group coined the term 'sexual harassment', but as I've been stressing, the rest of the description of the example makes it sound much more like Sanford was initiated into a preexisting practice, rather than witnessed the beginning of one.

40 Kidd and Carel (2017) suggest that hermeneutical injustice can take the form of *epistemic isolation*, in which 'a person or group lacks the knowledge of, or means of access to, particular information' (2017: 183–184). In these terms, the point is that a subject can be deliberately epistemically isolated by another (as in Kidd and Carel's own example of a repressive government that blocks access to certain literature, internet resources, and the like), and in such cases we seem to have a perpetrator (or perpetrators) of hermeneutical injustice.

41 Compare Luzzi 2024, which introduces a category of 'deception-based hermeneutical injustice', illustrated by cases of people born with intersex conditions who undergo medically unnecessary surgical interventions when babies, and whose carers deliberately (though perhaps with the best of intentions) lie to them about this surgery, for example by pretending

it was for a different kind of condition for which surgery would be medically necessary. Luzzi argues that such cases put pressure on Fricker's claim that hermeneutical injustice is purely structural.

42 For a particularly clear statement on this issues, see Fricker 2013: 1319.

43 As Medina notes, Fricker accepts this last point to some degree when she discusses the way that people can cultivate the epistemic virtue of hermeneutical justice, which involves being open to the possibility that a speaker is struggling to make themselves communicatively intelligible due hermeneutical marginalization, and trying to mitigate the effects of this as much as possible under the circumstances (Fricker 2007: 169–173).

44 See Maitra 2010: 209–210 for related points, and for a brief response to Medina, see Fricker 2016: 172 n.16. It's worth stressing again that questions about whether these various forms of injustice are purely structural or involve perpetrators do not by themselves settle whether anyone is to *blame* for them: see Medina 2013 for his account of epistemic responsibility and blame and McKenna 2023: ch. 7 for sympathetic discussion.

45 It's not clear that Fricker really did overlook this kind of scenario (see Fricker 2016: 165–166), though there is room to argue that she didn't afford it sufficient significance.

46 There are some tricky issues here about how best to understand the kind of examples Dotson highlights here, and how they relate to Fricker's two species of epistemic injustice: see Goetze 2018 for relevant discussion. As Dotson and Pohlhaus both acknowledge, willful hermeneutical ignorance and contributory injustice seem to be very similar, perhaps intimately related, notions.

47 Katharine Jenkins similarly discusses male victims of domestic abuse, who she suggests 'as a group have been hermeneutically marginalized even within conversations about domestic abuse' (2017: 197).

48 Medina suggests that Rose's situation is in part due to the hermeneutical marginalization of 'non-heterosexuals' (2013: 107 n. 8: see also Clanchy 2023: 825). As a point about why men might find it difficult to make their experiences of being stalked by other men intelligible in general, this strikes me as plausible. However, I'm not sure it fits well with the particular difficulties Rose has in McEwan's novel, which most often seem more to do with the fact that the way that Parry's de Clerambault's syndrome manifests itself in his behaviour doesn't seem threatening in any of the ways recognized by those Rose talks to (until things escalate into outright violence).

49 In a recent paper I became aware of after writing this section, Nick Clanchy raises similar worries with Fricker's treatment of the example of Joe Rose, and makes a superficially similar response, arguing that Rose's ordeal is 'collateral damage' caused by patriarchal oppression of women (2023: 826). However, Clanchy holds that to make sense of the example, we must insist that it's a case of hermeneutical injustice, albeit one that demonstrates that it's a mistake to think that such an injustice must be due to the marginalization of a social group one is a member of. I don't see the grounds for this insistence; this is a dispute I'll return to in McGlynn (in preparation). Hänel 2021 discusses a related but distinct phenomenon she labels 'hermeneutical misfiring'.

50 In a more recent paper (2016: 166), Fricker writes that Joe Rose is the 'vanishingly minimal case' of hermeneutical injustice, which I find even less illuminating. Fricker suggests there that Rose has no difficult understanding his experiences and communicating them to most other people; I don't think that's borne out by the details of McEwan's novel, but I won't make that case here. Clanchy (2023: 822–823) makes the related point that it's very unclear which meaning-making practices Rose is plausibly excluded from in the example.

51 Compare Romdenh-Romluc 2016: 604–605.

52 In the case of testimonial injustice, Fricker offers us a characterization (in terms of prejudicial credibility deficits), and a richer account of its primary harm in terms of the notion of epistemic objectification; my point in the text is that neither Fricker nor Goetze seems to be offering anything in the ballpark of that second account for hermeneutical injustice.

53 Fricker's way of wording things is not always very clear on this matter, but she does write (2007: 54): 'It would be melodramatic to suggest that whenever someone suffers testimonial injustice they are thereby inhibited, at least a tiny bit (whatever that would mean), in the formation of their identity'.

54 For reasons of space, in this section I've merely sketched the line of argument that would justify the claim that there are no *prima facie* plausible accounts of the primary harm of hermeneutical injustice on offer in the literature; for the full argument, engaging with the details of each of these proposals, see McGlynn (in preparation).

55 On testimonial injustice, see Barnes 2016: ch. 4 and Lackey 2020, 2023. On hermeneutical injustice, see Jenkins 2017; Bratu and Hänel 2021; Falbo 2022; and Dular 2023. It's worth noting that if hermeneutical injustice is more heterogenous in nature than Fricker's discussion suggests, this will make the task of identifying a harm involved in *every* instance of it even more challenging than the previous section implied.

56 See Medina 2013 and Fricker and Jenkins 2017 for relevant discussion.

57 I discuss all of these issues in more detail in McGlynn (in preparation).

58 Several of the other chapters in this handbook discuss how epistemic injustice relates to other key issues in social epistemology: contextualism (Ichikawa); epistemic infringement (Leydon-Hardy) epistemic reparations (Lackey);

evidentialism (Matheson); first-person authority (Borgoni); hinge epistemology (Coliva); knowledge ascriptions (Rysiew); and trust (Carter).